

26STCV08770 26STCV08770

County: los-angeles

Division: Civil Law and Motion

Department: 316

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Case Number: 26STCV08770 Hearing Date: August 3, 2026 Dept: 316

BACKGROUND

This case is a habitability dispute. Plaintiffs Sandra Cha and Giulio Gallese allege that Defendant The Summit failed to properly maintain and manage the rental property in which Plaintiffs resided. As a result of Defendants' poor management, Plaintiffs allege they were constructively evicted from the property.

On March 18, 2026, Plaintiffs filed a complaint against Defendant. The complaint alleges eight causes of action stemming from the facts alleged above.

On April 1, 2026, Plaintiffs filed a Notice of Related Case with Case No. 25STUD09673, an unlawful detainer action filed by Defendant against Plaintiffs. Possession is longer at issue in that case given that Plaintiffs have vacated the property.

On July 10, 2026, Plaintiffs filed a Motion to Consolidate Cases.

On July 15, 2026, the Court granted Plaintiffs' Notice of Related Case and ruled that this specific action (Case No. 26STCV08770) was the lead case.

No opposition or reply has been filed.

TENTATIVE RULING

Plaintiffs' Motion to
Consolidate Case is GRANTED.

LEGAL STANDARD

Code of Civil Procedure

section 1048, subdivision (a), provides that "[w]hen actions involving a common question of law or fact are pending before the court, courts may order a joint trial of any or all of the matters in issue in the actions; it may order all the actions consolidated, and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).)

A trial court has broad

authority to grant or deny a motion to consolidate. (See *Fellner v. Steinbaum* (1955) 132 Cal.App.2d 509, 511.) A court generally considers the following:

(1) whether granting consolidation would delay the trial of any of the cases involved; (2) whether joining the actions involved would make the trial too confusing or complex for a jury; and (3) whether consolidation would adversely affect the rights of any party. (*State Farm Mut. Auto. Ins. Co. v. Superior Court* (1956) 47

Cal.2d 428, 430-431.) Further,

courts evaluate whether consolidation would promote judicial economy and convenience, avoid unnecessary duplication, and reduce the risk of inconsistent adjudications. (See *Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979.) Courts have discretion to enact complete

consolidation where there is a single set of findings and judgment and where no doubt exists as to the applicability of the various findings to each of the consolidated cases. (*Page v. Bakersfield Uniform & Towel Supply Co.* (1966) 239 Cal.App.2d 762, 772.) Similarly, consolidation is appropriate where the causes could have been joined together originally. (*Jaffe v. Albertson Co.* (1966) 243 Cal. App. 2d 592, 606-607.)

Under the local rules,

"[c]ases may not be consolidated unless they are in the same department. A motion to consolidate two or more cases may be noticed and heard after the cases, initially filed in different departments, have been related into a single department, or if the cases were already assigned to that department." (Super. Ct. L.A.

County, Local Rules, rule 3.3, subd. (g)(1).) Under the California Rules of

Court, a motion to consolidate must “[l]ist all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record”; “[c]ontain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first”; and “[b]e filed in each case sought to be consolidated.” (Cal. Rules of Court, rule 3.350(a)(1).)

DISCUSSION

Plaintiffs seek to consolidate this action (Case No. 26STCV08770) with Plaintiffs’ unlawful detainer action (Case No. 25STUD09673).

On July 15, 2026, the Court related the two cases, and they are both pending in this department. (See July 15 Minute Order.) Furthermore, Plaintiffs have listed all named parties in each case, the name of the parties who have appeared, the names of their respective attorneys of record, the captions of the two cases (with the lowest numbered case shown first), and filed this motion in each case sought to be consolidated. (See Motion, ¶¶ 1-2.) Therefore, Plaintiffs have satisfied all procedural requirements. (See Super. Ct. L.A. County, Local Rules, rule 3.3, subd. (g)(1); Cal. Rules of Court, rule 3.350(a)(1).)

Plaintiffs contend that the two cases involve common questions of law and facts, and that consolidation will avoid unnecessary costs and delay. (See Motion, ¶ 3.) The Court agrees. The two cases stem from the same circumstances and share overlapping issues of habitability, retaliation, and rent. Therefore, to best promote judicial economy and convenience, avoid unnecessary duplication, and reduce the risk of inconsistent adjudications, the Court will grant the motion. (See *Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979; see also *Fellner v. Steinbaum* (1955) 132 Cal.App.2d 509, 511.)

CONCLUSION

For the foregoing reasons, Plaintiffs’ Motion to Consolidate Case is GRANTED.